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CHAPTER 18

SMALL AND MEDIUM-SIZED ENTERPRISES

Article 18.1

General principles

1. The Parties recognise that small and medium sized enterprises, which include micro, small and medium sized enterprises and entrepreneurs (hereinafter referred to as “SMEs”), contribute significantly to trade, economic growth, employment and innovation. The Parties seek to support the growth and development of SMEs by enhancing their ability to participate in and benefit from the opportunities created by this Agreement.
2. The Parties recognise the importance of access to trade-specific information and transparency disciplines to facilitate the inclusion of SMEs in international trade. They also recognise that in addition to the provisions in this Chapter, there are other provisions in this Agreement that seek to enhance cooperation between the Parties on small and medium-sized enterprises issues or that otherwise may be of particular benefit to SMEs. Such cooperation activities shall take place in accordance with the provisions of Chapter 17 (Economic Cooperation and Capacity Building).

Article 18.2

Information sharing

1. Each Party shall establish or maintain its own publicly accessible website containing information regarding this Agreement, including:
 - (a) a summary of this Agreement; and
 - (b) information designed for SMEs that contains:
 - (i) a description of the provisions in this Agreement that the Party considers to be relevant to SMEs ; and
 - (ii) any additional information that the Party considers would be useful for SMEs interested in benefitting from the opportunities provided by this Agreement.
2. Each Party shall include links from the website provided for in paragraph 1 to:
 - (a) the text of this Agreement, including all annexes, tariff schedules, and product-

specific rules of origin;

- (b) the equivalent website of the other Party; and
 - (c) the websites of its government authorities and other appropriate entities that the Party considers would provide useful information to persons interested in trading, investing, or doing business in that Party.
3. Each Party shall include an internet link in the website provided for in paragraph 1 to websites of its own authorities with information related to the following.
- a. import, export, and transit regulations as well as a description of the importation, exportation, and transit procedures informing of the practical steps needed and the forms, documents and other information required for importation into, exportation from, or transit through the customs territory of that Party;
 - b. regulations and procedures concerning intellectual property rights, including geographical indications;
 - c. technical regulations, conformity assessment procedures and lists of conformity assessment bodies, where third party conformity assessment is mandatory;
 - d. sanitary and phytosanitary measures relating to importation and exportation;
 - e. rules on public procurement, a database containing public procurement notices as well as other relevant information concerning public procurement opportunities;
 - f. business registration procedures;
 - g. applied rates of duties and taxes of any kind imposed on or in connection with importation or exportation;
 - h. fees and charges imposed by or for governmental agencies on or in connection with importation, exportation or transit;
 - i. duty drawback, deferral, or other types of relief that reduce, refund, or waive customs duties;
 - j. rules for the classification or valuation of products for customs purposes; and
 - k. (g) other information which the Party considers may be of assistance to SMEs;
4. Each Party shall include a link from the website provided for in paragraph 1 to a database that is electronically searchable by tariff nomenclature code and that includes the following information with respect to access to its market:

- (a) rates of customs duties and quotas (including most-favoured nation , rates concerning non-most favoured nation countries and preferential rates and tariff rate quotas);
 - (b) excise duties;
 - (c) taxes (including value added tax, and/or income tax on imports, and/or sales tax on luxury goods);
 - (d) rules of origin;
 - (e) other tariff measures;
 - (f) information needed for import procedures; and
 - (g) information related to non-tariff measures or regulations.
5. Each Party shall regularly, or when requested by the other Party, update the information and links referred to in paragraphs 1 to 4 to ensure that they are up-to-date and accurate.
 6. Each Party shall ensure that information set out in this Article is presented in a manner that is easy to use for SMEs. Each Party shall endeavour to make the information available in English.
 7. No Party shall apply a fee shall apply to any persons on either party for access to the information provided pursuant to paragraph 1 to 4.

Article 18.3

SME contact points

1. Each Party shall, upon the the entry into force of this Agreement, designate a contact point for the implementation of this Chapter (hereinafter referred to in this Chapter as “SME Contact Points”) and notify the other Party of the contact details including information regarding the relevant officials. The Parties promptly notify each other of any change of those contact details.
2. The SME Contact Points shall:
 - (a) ensure that SMEs’ needs are taken into account in the implementation of this Agreement so that SMEs of both Parties can take advantage of new opportunities under this Agreement;
 - (b) consider ways to strengthen the cooperation on matters of relevance to SMEs between the Parties to increase trade and investment opportunities for SMEs;
 - (c) identify ways and exchange information for EU and Indonesian SMEs to take

advantage of new opportunities under this Agreement;

- (d) monitor and ensure that the information referred to in Article 18.2 (Information Sharing) is up-to-date and relevant for SMEs. Either Party may, through the SME Contact Points, suggest additional information that the other Party may include in its websites to be maintained in accordance with Article 18.2 (Information Sharing);
 - (e) examine any matter relevant to SMEs in connection with the implementation of this Agreement, including:
 - (i) exchanging information to assist the Trade Committee in its task to monitor and implement the SMEs-related aspects of this Agreement;
 - (ii) assisting and participating as appropriate in the work of other committees, contact points and working groups including those dealing with the provisions on regulatory cooperation/regulatory coherence and non-tariff issues established by this Agreement in identifying and considering matters of interest to SMEs in order to improve the ability of SMEs to engage in trade and investment among the Parties;
 - (f) report periodically on their activities, jointly or individually, to the Trade Committee for its consideration; and
 - (g) consider any other matter arising under this Agreement pertaining to SMEs as the Parties may agree.
3. SME Contact Points shall meet as mutually agreed once a year if appropriate and shall carry out their work through the communication channels decided by the Parties, which may include electronic mail, videoconference, or other means.
4. SME Contact Points may seek to cooperate with experts and external organisations, as appropriate, in carrying out their work in accordance with this Chapter.

Article 18.4

Non-Application of dispute settlement

The provisions of this Chapter shall not be subject to Chapter 22 (Dispute Settlement).